

Memo.No.1798/SC.E/87-4, Genl.Admn. (SC.E) Dept., dt.17.02.1998 regarding Commissionerate of Inquiries - procedure required to be followed by Departments for entrustment of cases.

Subject Heading : Commissionerate of Inquiries - procedure to be followed by Departments

Ref : Govt.Memo.No.490/SC.E/87-1, G.A.(SC.E) Dept., dt.13.03.87.

In the reference cited, it has been clarified to the Heads of Departments and Departments of Secretariat, that only cases of employees for whom the appointing authority is the Government should be referred to the Commissioner for Departmental Inquiries and however in respect of cases enquired into by the Anti-Corruption Bureau and recommended for departmental action, all cases of Gazetted Officers irrespective whether the appointing authority is the Government or Head of Department shall be referred to the Commissioner for Departmental Inquiries. Such reference of cases to the Commissioner for Departmental Inquiries should be in respect of cases which require the disciplinary authority after examination of the Anti-Corruption Bureau report should frame charges, obtain explanation from the Charged Officer and after consideration of the explanation, refer the matter to the Commissioner for Departmental inquiries, if enquiry is found necessary, furnishing the required information / documentation.

2. The Commissioner for Departmental Inquiries has brought to the notice of this Department that the Departments are not following the instructions contained in the Memorandum cited and are entrusting the cases to him without furnishing the relevant information. He has, therefore, suggested that to enable him to expeditiously dispose of the cases entrusted, the Departments of Secretariat may,

- 1) ensure compliance with the instructions contained in Memo.No.490/SC.E/87-1, dt.13.03.87 while entrusting the cases to the Commissioner for Departmental Inquiries.
- 2) ensure that the name and the address of the Presenting Officer is sent while entrusting the cases to the Commissioner for Departmental Inquiries.
- 3) Furnish the address of the Charged Officer and witnesses while referring the cases to the Commissioner for Departmental Inquiries.
- 4) Ensure that all the records relevant to the enquiry are collected before the case is referred to the Commissioner for Departmental Inquiries.

3. The Departments of Secretariat are requested to ensure that the above requirements are fulfilled while entrusting the cases to the Commissioner for Departmental Inquiries.